

EXPERT REPORTS · 1 MAR 1998

SEPT report

TYPE	DATE	PARTIES
Private expert report	1 Mar 1998	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

S.E.P.T. assignment report — Alain Husson-Dumoutier · March 1998

Overview: private expert report produced by the company S.E.P.T., under the responsibility of Alain Husson-Dumoutier (former head of franchising at Crédit Lyonnais, former court-appointed expert), at the request of McDonald's France and the bâtonnier Leloup.

Key points

Drawn up in response to Mr Gandur's report of 4 February 1998, the document pursues three objectives: to refute certain elements of the Gandur report as to form and substance, to set out the economics of the McDonald's franchise and to analyse the case of the companies managed by Mr Collorafi. A detailed chronology traces the Antibes lease-management (location-gérance) since 1987, the opening of the Quick, the creation of B & O and the opening of Antibes-Nord, the requests for Antibes-Ouest and Vallauris, the formation of Les Pins and the termination of the three agreements on 2 January 1998. The report criticises the inaccuracies and the aggregation of data for the Var and the Alpes-Maritimes used by Mr Gandur.

- In 1996: Quick 16,270,620 F, Antibes Centre 18,305,795 F, Antibes-Nord 3,388,837 F.
- In 1997: Quick down to 13,912,380 F; with Les Pins, Mr Collorafi's total reaches 31,556,280 F, i.e. about +17% on 1994.

Significance

A counter-expert report produced by McDonald's to contest the opposing economic analysis and to argue that the location strategy benefited Mr Collorafi.

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Source: bernardcollorafi.org/en/documents/sept-report-mcdonalds-counter-expertise-gandur-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.